Standard Operating Procedure (SOP)

Country Specific Requirements Austria

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QMS Area:	Quality
QMS Chapter:	4.9 Product Safety, Product Quality and Pharmacovigilance

Applicability

Bayer Level:	CH, PH

This document is electronically approved (signatures on the last page)

Distribution Sheet for Quality Regulations

Division/Business Unit ☒ PH ☒ CH

GBS Location
☐ Global Business Services Barcelona
☐ Global Business Services Costa Rica/Brazil
☐ Global Business Services Manila
☒ Global Business Services Gdansk
☐ Global Business Services India
☐ Global Business Services Dalian
☐ Global Business Services Germany

Region/ Country
☐ Global
☒ Specific Country: Austria

Relevance for R&D QMS
☐ Affected
☐ Interface
☒ N/A

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Relevant Process and Activities:	PTC

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1 Scope and Framework

1.1 Scope

Bayer Country Quality Units are accountable for a GMP compliant Product Technical Complaint Management within their respective countries. Within this responsibility they are supported by the respective Global Business Service in process steps like complaint initiation, classification forwarding for investigation to the RQU, and final approval including complaint sample management and reimbursement process.

This SOP defines clear guidance to the Global Business Service regarding all country specific requirements.

1.2 Framework

This SOP is based on principles and requirements outlined in SSC-PTC-SOP-001 “Manage Product Technical Complaint and Suspected Counterfeit Incidents in GBS”.

2 Abbreviations

AE	Adverse Event
CMO	Contract Manufacturing Organization
CQH	Country Quality Head
CQU	Country Quality Unit
GBS	Global Business Service
OTC products	Over-the-counter products
PTC	Product Technical Complaint
PV	Pharmacovigilance
RQU	Responsible Quality Unit

3 Purpose & Set-Up

3.1 Purpose

Country Specific Requirements for Austria are described in this SOP, regarding e.g. Data Privacy, Sample Handling Process, Reimbursement Process, Contacts, escalation rules.

During the processing of all PTCs by Bayer owned Global Business Service all country specific requirements are considered and followed besides the general complaint handling described in the SSC-PTC-SOP-001 “Manage Product Technical Complaint and Suspected Counterfeit Incidents in GBS”.

3.2 General guidance

The employees of Global Business Services follow the SOP during complaint processing in the complaint database on behalf of the Country Quality Units.

3.3 Roles and responsibilities

GBS team	- Enters PTCs, Suspected Counterfeit Incidents and Usability Issues according to defined timelines in a timely manner, entering them into the global complaint database in English language - Organizes missing information and asks CQU for any support contacting the complainant if not possible/allowed by GBS (e.g. data privacy, non-hosted language) - Performs the initial intake of complaints after receipt - Informs the CQU about all PTCs where local authorities are involved, about all potential counterfeits and any other cases described in this SOP - Informs the respective PV about all PTCs with a potential associated AE or LODE or potentially reportable medical device complaints, including the unique complaint database number and all relevant follow-up information - Forwards the case to the respective RQU for further assessment - Initiates the process of sample shipment if requested by RQU or specified in any other guidance document - Reviews the case for plausibility and closes the complaint case in complaint database - Sends out standard response letters in case it is agreed with the CQU - Supports the process for reimbursement management - Forwards all cases that are not PTCs back to the CQU or to the appropriate function for further processing
Country Quality Head (CQH) / Country Quality Unit (CQU)	- Is responsible for regular KPI evaluation to get overview of complaint activities at the GBS - Supports the GBS in organizing missing complaint information - Organizes the complaint sample and sends it to the RQU if requested. - Sends out the Response Letters to the complainants as requested and agreed with the GBS - Contacts local CMO on request of GBS as RQU to get investigation reports from the respective CMO - Ensures that all changes within the country law and regulation are directly notified to the GBS and that the Country Specific SOP is updated - Ensures that the current list of distributed products is updated and contains all products.

4 Specific requirements regarding PTC handling

4.1 Country Specific Requirements listed by different topics

Description	Assigned Roles & Document Reference
4.1.1 General Information In Austria the company operates under one legal entity with distributor status: Bayer Austria GesmbH The main office is located in Vienna	
4.1.2 Contact list Country Quality Unit: *complaintmanagement.austria@bayer.com* Country Quality Head: Dagmar Werner *dagmar.werner@bayer.com* KUNDENSERVICE Austria: *kundenservice-center.austria@bayer.com* **Remark:** Current name and e-mail address of CQH and CQH deputy are found on the QINT SharePoint: *https://bayergroup.sharepoint.com/sites/oneqint/SitePages/Who%20are%20we.aspx#country-quality-list*	
4.1.3 Escalation Rules The CQH should be notified via IQMS notification about any complaint case referring to at least one of the following situations: - Suspected Counterfeit Cases - Any cases involving Health Authorities - Cases with final risk category high or medium - Special cases (e.g. potential legal cases) **Remark:** The current names and e-mail addresses of the CQH and the CQH deputy are found on the QINT SharePoint: *https://bayergroup.sharepoint.com/sites/oneqint/SitePages/Who%20are%20we.aspx#country-quality-list*	GBS
4.1.4 Pharmacovigilance cases If a complaint case is related to any type of Adverse Event, the Pharmacovigilance department has to be informed via the following e-mail address: bv-med-ams@bayer.com, unless complaint was received from PV.	GBS

Description	Assigned Roles & Document Reference
4.1.5 Product Samples In case of complaints coming from customers or pharmacies the request for return of the sample is incorporated in the acknowledgment letter (Annex 2). The customer is asked to send the sample, with costs shifted to the recipient, to the following address: Bayer Austria Ges.m.b.H. Quality Management Am Europlatz 1 1120 Wien, Österreich Add the complaint details to the excel file “Samples list” available on shared Teams Group, to inform the CQU about new sample being expected. In case sample is not requested by RQU, but pictures are, ask CQU to make pictures of the received sample.	GBS
4.1.6 Statement letter **Acknowledgement Letter when a complaint comes in:** After a complaint is handed in, an immediate acknowledgement of receipt is sent out to the complainant. If there are missing data in the initial complaint (for ex. batch number), the letter of acknowledgment will be expanded with the request for providing missing data by the complainant. - Standard templates are added in the Annex 2 (Acknowledgment letter). **Response Letter after closing:** Response letter, if requested by the complainant, is send by CQU. GBS informs CQU about complaint being ready for closure, CQU prepares and sends out the response letter with GBS in copy of the e-mail. For Unfirmed Quality Defect cases and cases with Final Risk Classification Low GBS adds the response letter to Persons section before finalizing the complaint entry. For cases involving HA or special cases the IQMS case is closed and response letters filed locally by CQU	GBS
4.1.7 RQU Contact list A table with all available products in the country, needed for entry into the complaint database, is available on SharePoint: go/ptcops. For CH products registration status in the respective country as well as Manufacturing Site are available via SYNAPS: go/synaps. List with the respective RQU contact names are provided by the Divisional Quality Assurance function and available on the SharePoint: PH: *PH RQU responsible list_HJ.xlsx* CH: *IQMS_MASTER LIST COMPLAINT RESPONSIBILITIES.xlsx*	GBS
4.1.8 List of Local Opportunities Products n/a	

Description	Assigned Roles & Document Reference
4.1.9 Data Privacy Requirements PTC officer populates the personal data of a private person and fill in complaint database fields of complainant data when and to the degree needed to perform the sample handling. Every e-mail to non-professional customers should contain mandatory data privacy information (Annex 2): • For private persons: only the last name, zip code, city and country are entered • For pharmacies, clinics, wholesaler etc.: full name of institution (pharmacy, clinic or wholesaler), the full postal address and the country are entered, but no contact person to avoid double entries	
4.1.10 Gathering additional information (including obtaining translation) The German language is a hosted language in GBS Gdansk. This means that written contact with complainant to gather missing information regarding the complaint is done by GBS employee responsible for the case. If a situation occurs, that there is only a phone number given in the complaint, and any information is missing (for ex. batch number), contact CQU and ask for support in calling the complainant. In case when the country organization receives a complaint firstly by a phone, then Product Complaint Form (see Annex 1) can be used to document received information. The CQU sends this form to the GBS via e-mail as soon as possible, because timeline starts when phone complaint is received by the CQU.	GBS CQU
4.1.11 Reimbursement and Replacement The general rule is that replacement product is granted, only if requested by complainant. The process is started at the time of complaint/complaint sample receipt. Consumers can receive a replacement only through a pharmacy, direct sending is not possible. **Consumer Health** No special requirements need to be fulfilled. <u>Non-professional customers</u> To provide replacement to the customer, send the Acknowledgment letter, using template Annex 2. In the e-mail, include the building block text "*CH cases –non-professional customer",* asking the customer to choose a pharmacy to which the replacement will be sent. After response is received and the chosen pharmacy information provided, send an e-mail to KUNDENSERVICE Team, requesting to arrange the replacement to given pharmacy using template Annex 3 "Replacement request KUNDENSERVICE". After confirmation e-mail receipt from KUNDENSERVICE, that the replacement has been sent to the chosen pharmacy, send an e-mail to the complainant using template Annex 4 "Replacement pick-up" informing complainant that the replacement is going to be ready to be picked up. <u>Professional customer (pharmacy/wholesaler)</u> To provide replacement to the professional customer, send the Acknowledgment letter, using template Annex 2. In the e-mail, include the building block text *"CH cases - pharmacies/wholesaler"*. Send an e-mail to KUNDENSERVICE Team, requesting to arrange the replacement to given pharmacy/wholesaler using template Annex 3 "Replacement request KUNDENSERVICE".	GBS

Description	Assigned Roles & Document Reference

Pharma (except Breelib)

An acceptance of replacement from Product Manager is required. Product Managers contact information are to be found in the Product List available on PTC SharePoint. Breelib replacement is outside SSC responsibility.

Non-professional customers

To provide replacement to the customer, send the Acknowledgment letter, using template Annex 2. In the e-mail, include the building block text "*PH cases- non-professional customer"* asking the customer to choose a pharmacy to which the replacement will be sent. Send an e-mail using template Annex 3 "Replacement request" to KUNDENSERVICE and give in e-mail copy respective product manager/managers, who is going to accept or decline the request and provide the decision to KUNDENSERVICE, which is going to arrange replacement. After confirmation e-mail receipt from KUNDENSERVICE, that the replacement has been accepted and sent to the chosen pharmacy, send an e-mail to the complainant using template Annex 4 "Replacement pick-up" informing complainant that the replacement is going to be ready to be picked up

Professional customer (pharmacy/wholesaler)

To provide replacement to the professional customer, send the Acknowledgment letter, using template Annex 2. In the e-mail, include the building block text "*PH cases-pharmacies/clinics"*. Send an e-mail to KUNDENSERVICE Team, requesting to arrange the replacement to given pharmacy/wholesaler using template Annex 3 "Replacement request KUNDENSERVICE" to KUNDENSERVICE and give in e-mail copy respective product manager/managers, who is going to accept or decline the request and provide the decision to KUNDENSERVICE, which is going to arrange replacement. After confirmation e-mail receipt from KUNDENSERVICE, that the replacement has been accepted and sent to the chosen pharmacy, send an e-mail to the complainant using template Annex 4 "Replacement pick-up" informing complainant that the replacement is going to be ready to be picked up

IUS

An IUS replacement can be only provided after complaint sample is received at CQU. If the sample is not available, the replacement can be granted only if batch number has been provided by the complainant. The complaining physician or pharmacy is informed about the requirements, while Acknowledgment letter is send (Annex 2) by adding building block text "*IUS-only*". Complainant can receive replacement only through pharmacy, direct sending is not possible. To provide replacement to the complainant, include in the Acknowledgment letter (Annex 2) building block text "*IUS cases if requirements are fulfilled/blue if not yet fulfilled"* adding the words marked in blue if the sample availability or batch number is not known yet. This text is asking the complainant to choose the pharmacy to which replacement will be sent.

4.1.12 Mandatory Spot Checks for Translations — GBS

No translation service is used for Austria

Description	Assigned Roles & Document Reference

4.1.13 Exceptions and special cases

FMD Alerts

In Austria, Quality Assurance has 3 working days to forward information with initial evaluation of FMD alert to NMVS. Because of that, FMD alerts have to be checked daily and processed as priority. After sending an FMD alert to the manufacturer, report the IQMS number to the CQU as soon as possible via IQMS notification

4.1.14 Others

Third party warehouse

From the third party warehouse both internal and external complaints may be received. External complaints (from a wholesaler, pharmacy etc.) are processed in IQMS by GBS. Complaints regarding defects spotted at site by 3PL logistics provider are internal complaints and need to be forwarded to CQU.

5 Internal References

- SSC-PTC-SOP-001 “Manage Product Technical Complaints and Suspected Counterfeit Incidents in GBS”

6 External References

- N/A

History of changes

Version	Significant changes with respect to previous version	Effective date
1	New document	2021-11-15
2	# chapter 4.1.2 change of CQH person , change of O2C email # chapter 4.1.4 change of PV email # chapter 4.1.5 change of sample sending address	2023-06-11
3	# adjusting the SOP to new SOP template (IQMS GBS) # chapter 4.1.9 adjusting data privacy to new IQMS system # chapter 4.1.12 mandatory spot checks no longer needed # changed naming to match current database (IQMS # minor naming changes (GBS, Kundenservice etc)	See cover page

7 Annex 1

Product Complaint Form

Complaint created (date)……
Complaint received (date) ……

Product information:	
Product name	
Batch / lot number	
Dosage form *(cream, tablet, capsule, etc.)*	
Package type/size	
Number of packages	
Sample available?*	Yes/No
*Sample available = please keep for further potential shipment	

Complaint information:	
Complaint description (defect description, is it suspected counterfeit case, etc.)	
Adverse event reported?	Yes/No
Does the complainant expect a response from Bayer?**	
**By requesting a response, the Complainant agrees to his/hers contact data being processed by Bayer for the purpose of providing the answer to the submitted complaint *(the exact sounding to be aligned with legal)*	

Complainants' contact information attention: in the countries with special Data Privacy regulations to be replaced by the complainant code number (to be given by CQU)	
Name and surname	
E-mail address	
Telephone	
Home address	

Sender (if other than Complainant, e.g. a pharmacy)	
Senders' Name (Legal entity)	
Address	
E-Mail address	
Telephone number	

Any additional information	

8 Templates

Annex 2



Annex 2
Acknowledgment le

Annex 3



Annex 3
Replacement reques

Annex 4



Annex 4
Replacement pick-u

Task: Content Approval Verdict: Approve changes & release Approval to be made Effective	Dagmar Werner (dagmar.werner@bayer.com) Approver - Content 16-Dec-2025 07:24:29 GMT+0000
Task: Final Approval Verdict: Approve changes & release Final Approval to be made Effective	katarzyna mazur kominek (katarzyna.mazur-kominek@bayer.com) Approver 17-Dec-2025 14:33:02 GMT+0000